



Delaware County Commissioners Meeting January 19th 2021

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=hxTPuGpf770
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Delaware County Commissioners Meeting Summary

Meeting Date: January 19, 2021

Meeting Time: 9:05 AM

1. Pre-Meeting Hearings & Committee Work Sessions

- **Session Type & Topic:** Public Hearing regarding the Vacation of a Public Right-of-Way in Delaware County, Indiana (South of State Route 67) [00:00:51](#).
- **Summary of Discussion:** Legal counsel/staff explained that a petition was received from a property owner south of SR 67 to vacate a small strip of right-of-way originally acquired by the state and relinquished to the county in the late 1990s. The property owner is already maintaining the area and wishes to place a shed near the property line. The vacation simplifies the property lines, does not affect the actual road, and maintains standard operations. No public comments for or against the petition were received.
- **Action:** Public hearing closed by motion and voice vote/roll call.

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** Presiding officer called the Delaware County Commissioners meeting to order on Tuesday, January 19, 2021, at 9:05 AM [00:00:09](#).
 - **Attendance:**
 - **Present:** Commissioner Henry, Commissioner Reagan, Commissioner King.
 - **Presiding Officer:** (Not explicitly specified by title, but conducted by the board).
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3. Preliminary & Procedural Business

- **Ceremonial Openings:** Reminders regarding public participation and email submissions to commissioners@co.delaware.in.us [00:03:03](#).
 - **Approval of Minutes:** Review and approval of minutes from December 21, 2020, and January 4, 2021 [00:05:31](#). Approved by roll call vote.
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4. Substantive Business & Board Action

- [00:03:23](#) **Resolution Number 2021-001: Establishing Policy and Procedures to Protect the Quorum and Foster Effective Administration of Public Meetings**
 - **Sponsor / Presenter:** John (County Attorney/Staff).
 - **Deliberation Summary:** This resolution was previously tabled to incorporate provisions addressing electronic communication and reinforcing instructions for public email submissions (commissioners@co.delaware.in.us).
 - **Action & Vote Disposition:** Removed from table by roll call vote. Adopted by roll call vote [00:05:07](#).
- [00:06:03](#) **Contract / Agreement: Ashton Land Surveyor <U+2013> Grant of Recreational Trail Easement**
 - **Sponsor / Presenter:** Phil Tavis [00:06:20](#).
 - **Deliberation Summary:** Request for a grant of easement underneath the Walnut Street Bridge. The sanitary district received a Department of Natural Resources (DNR) grant to build a trail along the central levee, requiring a recreational easement upon completion. A small section is owned by the commissioners below the Walnut Street Bridge.
 - **Action & Vote Disposition:** Approved by roll call vote [00:07:52](#).
- [00:08:08](#) **Contract / Agreement: Human Resources Consulting Services <U+2013> Wagner, Irwin, and Sheely**
 - **Sponsor / Presenter:** County Staff / Mr. Irwin.
 - **Deliberation Summary:** Renewal/update of a letter of engagement for ongoing human resources consulting services. Rates remain unchanged from prior years.
 - **Action & Vote Disposition:** Approved by roll call vote [00:09:14](#).

- **00:09:25 Grievance Decision: Delaware County Commissioners on Union Grievances**
 - **Sponsor / Presenter:** John (County Attorney) [00:09:30](#).
 - **Deliberation Summary:** Nine consolidated grievances from the union representing 911 operators, sheriff merit deputies, and jailers/security bailiffs regarding Article 23, Section 5 of the collective bargaining agreement. Employees are requesting time-and-a-half pay for hours worked during the COVID-19 pandemic over a six-week period (totaling approximately \$440,000). Approving the commissioner's decision allows the matter to move to Step 4 arbitration if requested by the union.
 - **Action & Vote Disposition:** Approved by roll call vote [00:10:31](#).
- **00:10:56 Perpetual Sidewalk/Trail Easement & Temporary Construction Easement (Star Bank and Ball State University)**
 - **Sponsor / Presenter:** County Staff [00:11:07](#).
 - **Deliberation Summary:** Formal acceptance of perpetual and temporary easements related to the Morrison sidewalk project on the north side of town, managed by the redevelopment commission.
 - **Action & Vote Disposition:** Approved collectively by roll call vote [00:12:05](#).
- **00:12:19 Emergency Declaration 2021-02 (COVID-19 Continuation)**
 - **Sponsor / Presenter:** County Attorney and Jamie Bain (Health Department) [00:12:28](#).
 - **Deliberation Summary:** Continuation of the local emergency declaration aligning with the Governor's executive order, expiring at the next meeting on February 1st. Delaware County remains in category "orange" with a 14% positivity rate. Jamie Bain provided a vaccine rollout update: the county is receiving 300+ doses weekly, with additional sites coming online via Open Door and Meridian. Board members expressed frustration regarding a lack of coordination and communication from the State Department of Health and State Emergency Operations Center (EOC) regarding state-run vaccination popup sites.
 - **Action & Vote Disposition:** Approved by roll call vote [00:22:43](#).
- **00:23:08 Ordinance Number 2021-001: Ordinance Amending Title 4 of Delaware County Code (Permit Fees)**
 - **Sponsor / Presenter:** County Staff / Marta [00:23:29](#).
 - **Deliberation Summary:** Proposed revisions to building permit fee schedules, which have not been raised since 2013. Comparisons with surrounding counties indicate local fees are low. Residential standards would adjust (e.g., from \$5.00 to \$7.50 per 100 square feet, and minimums from \$60 to \$75).
 - **Action & Vote Disposition:** Approved for first reading / introduction only by roll call vote [00:26:09](#).
- **00:26:42 Ordinance Number 2021-002: Right-of-Way Vacation Ordinance**
 - **Sponsor / Presenter:** County Staff [00:26:50](#).
 - **Deliberation Summary:** Formal ordinance enacting the right-of-way vacation subject of the earlier public hearing.

- **Action & Vote Disposition:** Introduced and approved for first reading by roll call vote [00:27:03](#).

5. Open Public Comment / Citizen Forum

- No general public comments were submitted or read into the record during the open comment periods [00:36:58](#). (Note: Department head discussions occurred under department reports).

6. Administrative Updates & Adjournment

- **Department Head & Board Announcements ([00:27:27](#)):**
 - **Circuit Court 6 Funding:** Discussion regarding the financial impacts and building-out costs of Circuit Court 6. A motion was made and approved (with Commissioner Reagan dissenting) to sign and send a letter to the Ways and Means Committee regarding funding constraints [00:30:37](#).
 - **Claims Approval ([00:31:05](#)):** Review and approval of claims totaling **\$1,538,749.38** [00:31:08](#). Commissioner Reagan raised questions regarding out-of-state check/wire disbursements for highway department machinery (rollers) and requested staff to vet vendors and escrow procedures. Claims approved by roll call vote [00:31:24](#).
- **Adjournment:** Meeting adjourned into recess following a motion and roll call vote [00:37:16](#).

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